

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2023-8282

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF MARY MACLEAN, LICENSE NO. LPC 1015,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Mary MacLean ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on August 26, 1994 having been issued license number LPC 1015, and is currently so licensed.

3. This Order is a full and final resolution of case number 2023-8282. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Based on its review of case number 2023-8282 the Board alleges that Respondent violated section 12-245-224(1)(b), (h), and (i), C.R.S. Respondent denies the Board's allegations.

5. Although Respondent denies the Board's allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated section 12-245-224(1)(b), (h), and (i), C.R.S., which state:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board

established pursuant to this article 245;

(h) Has performed services outside of the person's area of training, experience, or competence;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for licensure as a professional counselor in the State of Colorado at any time in the future.

7. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice.

8. Respondent also agrees not to perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any

provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

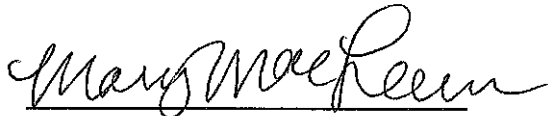
14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

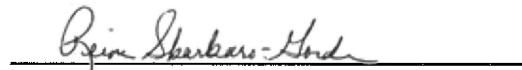
RESPONDENT



MARY MACLEAN
LICENSE No. LPC 1015

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 18th day of April,
2024.